

Parties to appear.

Each of Defendant's notices of motion fails to give notice of the court's tentative ruling system as required by Local Rule 3.9(d).

It is unclear to the court whether Claimant's Fifth Amendment issues have been resolved. It appears that F25-00225 is still pending.

DIAS v. GENERAL MOTORS, LLC
Case No. CU24-04621

Motion by Plaintiff for Attorney's Fees

TENTATIVE RULING

GM failed to file a timely noticed motion to strike or tax costs. The challenges raised in the opposition papers to costs are not considered.

As to the claim for attorneys' fees, Plaintiff seeks \$23,402.50. There was little to no litigation of this file. Although moving papers claim discovery motions were filed, no discovery motion appears in the court's file. It is difficult to reconcile counsel's representations of these efforts given these facts. Three case management conferences were held where counsel appeared remotely. The complaint is largely cookie cutter, as evidenced by erroneous references to BMW OF NORTH AMERICA, but does include specific information related to Plaintiff's individual claim. The matter is not complex.

The rate for attorneys ranging from \$350 to \$525 per hour is reasonable and consistent with Solano County rates for similar levels of experience. The rate of \$150 per hour for paralegals or legal secretaries assisting counsel is reasonable. The rate of \$250 for support staff is not reasonable and is inconsistent with Solano County rates.

A notice of conditional settlement was filed 9/25/25.

The court disallows hours associated to motions to compel discovery responses which were never actually filed despite counsel's representation to the contrary. MZ hours are reduced by 2.1. JLA hours are reduced by 5.5. The balance of the hours appear reasonable.

Based upon the above, the court awards all costs claimed of \$1,423.76. The court additionally awards attorneys' fees in the sum of \$18,732.50 for a total fees and costs award of \$20,156.26.

TASHA LO PORTO et al. v. CITY OF VALLEJO et al.
Case No. CU25-09509

VALLEJO's Demurrer to First Amended Complaint